

IN THE SUPERIOR COURT OF THE STATE OF WASHINGTON

STATE OF WASHINGTON,
Plaintiff,

v.

RILEY SAMPLE,
Defendant.

DOCKET NO.: [TO BE CONFIRMED]

MOTION AND APPLICATION TO VACATE THE RECORD OF CONVICTION PURSUANT TO RCW 9.95.240

STATUTORY AUTHORITY

RCW 9.95.240(1) — Every defendant who has fulfilled the conditions of probation for the entire period, or who was discharged from probation before the period ended, may at any time before the maximum period of punishment for the offence expires be permitted in the court's discretion to withdraw a guilty plea and enter a plea of not guilty, or, where convicted after a plea of not guilty, have the verdict set aside. The court may then dismiss the information or indictment, after which the person is released from all penalties and disabilities resulting from the offence. A proviso preserves the conviction for pleading and proof in any subsequent prosecution for any other offence, with the same effect as if probation had not been granted.

RCW 9.95.240(2)(a) — After the period of probation has expired, the defendant may apply to the sentencing court for vacation of the record of conviction under RCW 9.94A.640, and the court may in its discretion clear the record if it finds the defendant has met the equivalent of the RCW 9.94A.640(2) tests as those tests would be applied to a person convicted of a crime committed before 1 July 1984.

RCW 9.95.240(2)(b) — Carries the clerk transmittal to the Washington State Patrol identification section and any local police agency, the immediate-update and FBI transmittal duties, and the bar on dissemination except to criminal justice enforcement agencies.

RCW 9.94A.640(2) — Supplies the tests applied on the subsection (2)(a) limb, as those tests would be applied to a person convicted of a crime committed before 1 July 1984.

RCW 9.94A.030(11)(b) — Recognises RCW 9.95.240 as one of only four routes for removing a conviction from criminal history.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Superior Court of Thurston County, Washington, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this motion occurred in Thurston County, Washington.

II. PARTIES

3. Defendant is Riley Sample, whose address is 1234 Example Avenue, Olympia, WA 98501.
4. Plaintiff is the State of Washington.
5. Defendant has also been known as: Riley Q. Sample.

III. FACTS AND CASE HISTORY

6. On or about 11/02/1981, Defendant was charged with Second degree theft by Olympia Police Department.
7. The matter was assigned Docket Number [TO BE CONFIRMED].
8. On 06/14/1982, the matter was resolved with the following disposition: Convicted following a plea of guilty; placed on probation.

IV. ELIGIBILITY ALLEGATIONS

9. Defendant may be eligible for vacation on the following basis: Vacation of the record of a conviction for an offence committed before 1 July 1984, under RCW 9.95.240(2)(a), the period of probation having expired.
10. The period of probation imposed in this matter has expired.
11. The offence identified above was committed before 1 July 1984, so the tests under RCW 9.94A.640(2) fall to be applied as they would be applied to a person convicted of a crime committed before that date.
12. Defendant applies to this Court, as the sentencing court, for vacation of the record of conviction, and asks the Court to consider whether the equivalent of the RCW 9.94A.640(2) tests is met.
13. Defendant states the circumstances relied on in the accompanying statement; that statement is completed by Defendant and is not supplied by any other person.

IMPORTANT: Defendant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Defendant respectfully requests that this Court:

- (a) Grant this Motion and enter an Order directing the vacation of the record of the conviction identified in this Motion in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to vacate all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, Riley Sample, declare that the statements made in this motion are true and correct to the best of my knowledge, information, and belief.

Riley Sample
1234 Example Avenue, Olympia, WA 98501

Date: _____

[NOTE: Date of birth and Social Security Number should be added by defendant if required by the applicable form or local court rules.]

PROPOSED ORDER

IN THE SUPERIOR COURT OF THE STATE OF WASHINGTON

STATE OF WASHINGTON v. RILEY SAMPLE

DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Motion filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The clerk of the sentencing court, the Washington State Patrol identification section, and any local police agency holding a record of this matter, Olympia Police Department, and all other criminal justice agencies with records pertaining to this matter are hereby directed to vacate all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this motion:

- Proposed order vacating the record of conviction
- Certified copy of the judgment and sentence
- Proof that the period of probation has expired

Prepared by defendant using LegalEase RCAP. This is not an official court form.